



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 15 1994

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8901
(FOURTH REVISION)

1. Douglas Chemical Company, Liberty, Missouri is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a Division 6.1 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of chloropicrin in non-DOT specification packagings and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Douglas Chemical Company's application dated September 10, 1993 and supplemental letter dated October 1, 1993 submitted in accordance with 49 CFR 107.105 and 107.113 and a determination that it is necessary to preclude a serious economic loss brought about by the floods throughout the Midwestern United States and supplemental letter received November 24, 1993.
3. HAZARDOUS MATERIALS (Descriptor and Class). Chloropicrin, classed as Division 6.1.
4. PROPER SHIPPING NAME (49 CFR 172.101). Chloropicrin.
5. REGULATION AFFECTED. 49 CFR 173.227.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.
7. SAFETY CONTROL MEASURES. Packaging prescribed is an 1100-pound test, triple-wall, A-A-C flute, corrugated fiberboard box containing Nalgene brand polyethylene bottles, each separated by full inside height, 200-pound test, single wall, corrugated fiberboard partitions (dividers). Each package must be in accordance with the details, drawings, specifications and other information submitted in the application for this exemption.

The heavy-duty, linear (high density) polyethylene bottles with medium-mouth openings and leak proof heavy-duty polypropylene closures (screw caps) are manufactured by Nalge Company, Division of Sybron Corporation and listed in their Nalgene Bottles Brochure. The closure must be tightened firmly to the bottle and secured with tape or equivalent. The authorized packaging configurations, and Nalgene Bottles Brochure Catalog Numbers are as follows:

<u>Catalog Number</u>	<u>Capacity</u>	<u>Number to a Box</u>
2125-1000	32 oz.	12
2125-2000	64 oz.	6
2125-4000	1 gal.	4
2240-0015	1.5 gal.	2
2240-0025	2.5 gal.	2
2240-0050	5 gal.	1

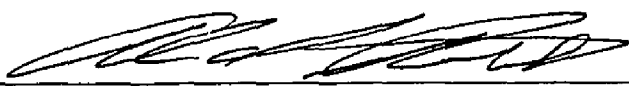
Bottles must fit snugly in the partitions and the box. The manufacturer's joint must be stitched. All box closures (flaps) must be securely fastened with staples. The filled box, stapled shut, must be sealed with 2-inch wide heavy-duty tape and bound with two nonmetallic straps. Each complete package, filled and closed as for shipment, must be capable of withstanding, without loss of contents of the package, a drop from a height of four feet onto solid concrete. Packagings may not be reused.

8. SPECIAL PROVISIONS. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. July 1, 1994.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 15 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA